

HOUSE BILL 1041

By Hawk

AN ACT to amend Tennessee Code Annotated, Title 2 and
Title 3, relative to the general assembly.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 3, Chapter 1, is amended by adding the following language as a new part:

3-1-301. The general assembly shall convene for a September session on the Tuesday immediately following Labor Day in each odd-numbered year and shall adjourn no later than September 30 of the same year.

3-1-302. At the conclusion of the first annual session of each general assembly, the adjournment resolution must provide that the general assembly will reconvene at twelve o'clock (12:00) noon central daylight time (CDT) on the Tuesday immediately following Labor Day in September of each odd-numbered year.

3-1-303.

(a) Notwithstanding any rule of the senate or house of representatives to the contrary, this part governs the biennial September sessions of the general assembly.

(b) All procedural provisions of this title and all rules of the senate and house of representatives not inconsistent with this part are applicable to biennial September sessions of the general assembly.

(c) The committee on rules for each house shall meet prior to the Thursday following Labor Day in September of each odd-numbered year to

consider additional rule amendments and suspensions necessary for the effective and efficient operation of the September session.

(d) The September session must be funded through the existing budget for the general assembly's legislative session.

3-1-304.

(a) During the September session, the general assembly may consider the following:

(1) All bills and resolutions filed prior to adjournment of the first annual session of the general assembly;

(2) Ninety-nine (99) bills and resolutions filed for the September session of the general assembly in accordance with subsection (b); and

(3) Other matters deemed appropriate and necessary by the general assembly, including, but not limited to, bills and resolutions excluded from the limitation imposed in subdivision (a)(2) and repassage of bills and resolutions over an executive veto.

(b)

(1) For the purposes of this section, "ninety-nine (99) bills and resolutions" does not include:

(A) General bills with local application and private acts;

(B) Resolutions that are memorializing or congratulatory in nature and are not referred to a standing committee;

(C) Resolutions that are procedural in nature and are not referred to a standing committee; and

(D) Supplemental appropriations bills, bond bills, index bills, and bills that contain the following language in their caption:

Relative to statutory revisions required for implementation of the supplemental appropriations act.

(2)

(A) The ninety-nine (99) bills and resolutions for the September session of the general assembly must be pre-filed for introduction by twelve o'clock (12:00) noon central daylight time (CDT) on the third Thursday in August prior to the September session. Each member of the house of representatives may file one (1) bill or resolution and each member of the senate may file up to three (3) bills or resolutions. Bills and resolutions introduced for the September session may be acted upon during the September session or during the second annual session of the general assembly beginning in January of the following year.

(B) Bills described in subdivision (b)(1)(D) must be pre-filed for introduction by twelve o'clock (12:00) noon central daylight time (CDT) on the third Thursday in August prior to the September session.

(C) Bills and resolutions described in subdivisions (b)(1)(A)-(C) may be filed at any time prior to the conclusion of the September session.

(D) No bills or resolutions required to be pre-filed in accordance with subdivisions (b)(2)(A) or (B) may be introduced through the delayed bills committee of either house.

3-1-305. For purposes of appointments and confirmations of any person to a board, commission, or other entity, the September session of the general assembly will not be considered an annual legislative session or a regular session.

SECTION 2. Tennessee Code Annotated, Section 2-10-310, is amended by adding the following as a new subsection:

() As used in this section, "general assembly session period" means the period from:

(1) The convening of the general assembly in organizational session to the earlier of the last day of regular session or June 1, in odd years;

(2) The convening of the general assembly in regular session to the earlier of May 15 or the conclusion of the annual session in even years; and

(3) The convening of the general assembly in any extraordinary or September session through the conclusion of such extraordinary or September session.

SECTION 3. Tennessee Code Annotated, Section 2-10-310(a)(1), is amended by deleting the subdivision and substituting the following:

Except as provided in subdivisions (a)(2) and (3), during the general assembly session period, a member of the general assembly or a member's campaign committee or the governor or the governor's campaign committee shall not conduct a fundraiser or solicit or accept contributions for the benefit of the caucus, any caucus member, or member or candidate of the general assembly or governor.

SECTION 4. Tennessee Code Annotated, Section 2-10-310(b), is amended by deleting the subsection and substituting the following:

During the general assembly session period, a political campaign committee controlled by a political party on the national, state, or local level, or controlled by a

caucus of such political party established by members of either house of the general assembly, or established or controlled by any member of the general assembly, that makes contributions to a candidate for the general assembly or governor for election or to defray the expenses of such person's office shall not conduct a fundraiser or solicit or accept contributions for the benefit of the caucus, any caucus member, or candidate for the general assembly or governor.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.